

AUTO RITE IT

PERSONAL DATA

The Secretary of State for Finance - Taxation and Tax Administration

P.O. Box 20201

2500 EE The Hague

Date

October 12, 2022

Subject

Our reference

z2022-04616

Contact person

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Dutch Data Protection Authority

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Your letter of

July 26, 2022

Your reference

2022-0000195710

Advice on the draft amendment to Article 10 of the Implementation Decree on cost allocation and data exchange under the Valuation of Real Estate Act.

Dear Mr. van Rij,

In your letter dated July 26, 2022, the Dutch Data Protection Authority (AP) was consulted pursuant to Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) regarding the draft amendment to Article 10 of the Implementation Decree on cost allocation and data exchange under the Valuation of Real Estate Act (hereinafter: the draft).

Main points

1. Include the purposes for the processing of value data by a municipal executive board in the draft.
2. Strengthen the explanation of the draft with the necessity of data processing.
3. Explicitly include the limitation to real estate located within the municipality.

The AP has objections to these points regarding the draft and advises against continuing the procedure unless the objections are resolved.

Scope of the draft

The draft includes the proposal to amend Article 10, first paragraph, of the Implementation Decree on cost allocation and data exchange under the Valuation of Real Estate Act (hereinafter: Implementation Decree). The draft designates the municipal executive board so that the board is authorized to use the value data (the WOZ value) and the associated temporal and meta-characteristics.

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1. Purpose limitation of data processing

In the draft, the municipal executive board is designated based on Article 37h of the Valuation of Real Estate Act. Article 37h of the Valuation of Real Estate Act states:

"By general administrative measure, administrative bodies are designated that are authorized to use a value data or the associated temporal and meta-characteristics for the purposes designated by that general administrative measure."

This implies that the purposes for the value data or the associated temporal and meta-characteristics must be included in the general administrative measure. The condition in the delegation basis is an elaboration of the requirement for purpose limitation as stated in Article 5, first paragraph, part b, of the GDPR. In the other parts of Article 10, first paragraph, of the Implementation Decree, the purposes are concretized each time. However, the draft refers to indefinite purposes that may be mentioned in a municipal regulation. This does not meet the requirement that the purposes of the data processing are included in the general administrative measure. The draft lacks the purpose limitation required by law. Furthermore, the draft does not meet the condition for the delegated regulatory authority. As a result, the legal basis for the provision of the data to the board is also deficient and therefore inadequate. The AP advises to specify the purposes for data processing in the proposed section.

2. Necessity of data processing

In the explanatory memorandum of the draft, it is described that for municipalities, the use of the value data may be necessary for the execution of a task assigned to municipalities outside of taxation. However, this is not further elaborated or substantiated. The explanatory memorandum does not clearly indicate what the necessity is for the data processing or for which task assigned to municipalities the intended data processing is necessary or could be. Thus, the rationale for the amendment is not clear.

The AP advises to supplement the explanatory memorandum with the rationale for the amendment and the necessity of data provision.

3. Limitation to real estate within municipal boundaries

In the explanatory memorandum, it is suggested that the use of the value data is restricted to real estate located within the municipal boundaries. However, this limitation is not evident from the text of the proposed article. Given the requirement of data minimization, as stated in Article 5, first paragraph, part c, of the GDPR, it is advised to include this limitation in the text of the article as well.

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Moreover, the explanatory memorandum notes that the intended value data is provided in combination with other data, including data from other registers. The AP additionally notes that the provision of other data, even if not in combination with the value data described in the draft, must also have a lawful basis if it concerns personal data.

The AP advises to include in the inserted section the limitation that it only concerns data about real estate located within the municipal boundaries.

Publication of the advice

The AP intends to make this advice public on the website www.autoriteitpersoonsgegevens.nl as soon as the text of the (amended) draft is made public. The AP would like to be informed of the expected timing of the publication as soon as it is known.

Yours sincerely,

Dutch Data Protection Authority,

Aleid Wolfsen

Chairman

'Article 6 of the GDPR.